

25STCV23394 25STCV23394

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Case Number: 25STCV23394 Hearing Date: June 26, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: June

26, 2026

CASE NAME: Andrew

Hamrick, et al. v. Giovanni Melandri, et al.

CASE NO.: 25STCV23394

DEMURRER

TO FIRST AMENDED COMPLAINT

MOVING PARTY: Defendants

Giovanni Melandri; Maria Bacchetta Melandri; Giovanni Melandri and Maria Bacchetta Melandri as Trustees of the Giovanni Melandri and Maria Bacchetta Melandri Trust dated August 9, 2010; and Maria Bacchetta Melandri dba Sunaire Systems

RESPONDING PARTY(S): Plaintiffs Andrew Hamrick,

Onahoua Rodriguez, individually and as guardian ad litem for minors Onabella Andrews and Ayden Andrews

REQUESTED RELIEF:

1. Demurrer

to the first, second, third, fourth, fifth, seventh, eighth, ninth, twelfth, fifteenth, sixteenth, and seventeenth Causes of Action for Failure to State Sufficient Facts to Constitute a Cause of Action.[1]

RULING:

1. Demurrer

to the first cause of action is SUSTAINED without leave to amend;

2. Demurrers

to the second, fourth, fifth, seventh, eighth, and ninth causes of action are OVERRULED;

3. Demurrer

to the third cause of action is SUSTAINED concerning the minor Plaintiffs and is otherwise OVERRULED;

4. Demurrers

to the twelfth, fifteenth, sixteenth, and seventeenth causes of action are SUSTAINED with leave to amend;

5. Plaintiffs

shall file their FINAL amended complaint within 21 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On August 8, 2025, Plaintiffs Andrew Hamrick, Onahoua Rodriguez, Onabella Andrews (by her guardian ad litem Onahoua Rodriguez), and Ayden Andrews (by her guardian ad litem Onahoua Rodriguez) (Plaintiffs) filed a Complaint against Defendants Giovanni Melandri & Maria Bacchetta Melandri (individually and as Trustees of The Giovanni Melandri and Maria Bacchetta Melandri Trust dated August 9, 2010 and as dba Sunaire Systems) (Defendants) with seventeen causes of action for: (1) Constructive Eviction; (2) Breach of Written Contract; (3) Breach of the Covenant of Quiet Enjoyment; (4) Tortious Breach of the Implied Warranty of Habitability; (5) Contractual Breach of the Implied Warranty of Habitability; (6) Negligence; (7) Violation of Los Angeles Municipal Code § 45.33; (8) Unlawful Entry; (9) Conversion; (10) Trespass; (11) Declaratory Relief; (12) Unpaid Wages including unpaid overtime wages; (13) Failure to Compensate for Meals and Rest Breaks; (14) Failure to Provide an

“Accurate” Itemized Wage Statement; (15) Disability Discrimination in Violation of FEHA; (16) Failure to Accommodate Disability in Violation of FEHA; and (17) Failure/Refusal to Engage in Interactive Process.

According to the Complaint, Plaintiffs were tenants at 4811 Ben Ave., North Hollywood, CA 91607 (the Property), owned by Defendants, since 2012. Plaintiffs also allege that Plaintiff Andrew also works for Defendants, who refuse to adequately pay him. Plaintiffs allege severe habitability issues that resulted in physical injuries to Plaintiffs. Plaintiffs further allege that Plaintiff Andrew sustained serious injuries while working for Defendants and they failed to provide medical care or engage in any interactive process with him.

On October 9, 2025, Defendants filed an Answer. That same date, Defendants Giovanni Melandri and Maria Bacchetta Melandri (the Melandris) filed a demurrer.[2]

On October 10, 2025, the Melandris filed the instant motion to strike.

On January 22, 2026, the court ruled as follows on the demurrer with motion to strike:

1. Demurrer

is SUSTAINED as to the First, Seventh, Ninth, Eleventh, Twelfth, Fourteenth, Fifteenth, Sixteenth, and Seventeenth Causes of Action;

2. Demurrer

is OVERRULED as to the Sixth and Thirteenth Causes of Action;

3. Demurrer

is SUSTAINED as to Defendant Maria Melandri as to the Second, Third, Fourth, Fifth, Eighth, and Tenth Causes of Action;

4. Demurrer

is SUSTAINED concerning the minor Plaintiffs as to the Third Cause of Action;

5. Demurrer

is OVERRULED as to Defendant Giovanni Melandri as to the Second, Third, Fourth, Fifth, Eighth, and Tenth Causes of Action;

6. Motion

to Strike is DENIED without prejudice;

7. Plaintiffs

shall file their amended complaint, consistent with the court's leave to amend scope, within 21 days' notice of this ruling.

On February 11, 2026, Plaintiffs filed their first amended complaint (FAC). Plaintiffs removed their previous eleventh (declaratory relief) and fourteenth (failure to provide an accurate itemized wage statement) causes of action.

On March 27, 2026, Defendants filed the instant demurrer. On June 12, 2026, Plaintiffs filed an opposition. On June 18, 2026, Defendants filed a reply.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.) Here, the parties did not sufficiently meet and confer since Defendants left one message for Plaintiffs without receiving a response. (Ross Decl. ¶ 2.) Still, insufficient meet and confer alone is not grounds to overrule or sustain a demurrer. (CCP § 430.41(a)(4).)

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the

evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, 147 Cal.App.4th at 747.)

;

When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

ANALYSIS:

Request for
Judicial Notice

The court GRANTS Plaintiffs' request for judicial notice. (Evid. Code § 452(d); Starr v. Ashbrook (2023) 87 Cal.App.5th 999, 1014 [“Although a court cannot take judicial notice of hearsay allegations in a court record, it can take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.”])

Demurrer

First Cause of
Action: Constructive Eviction

Defendants contend that this claim fails because Plaintiffs have not surrendered possession of the Property.

Plaintiffs argue they alleged constructive eviction during the period of time they were displaced due to dangerous conditions at the Property and it does not matter if they are currently in possession.

Defendants reply that constructive eviction requires permanent vacation of the premises, not temporary relocation.

Constructive eviction occurs when there is a

substantial and material interference with the tenant's beneficial use and enjoyment of the premises, causing the tenant to vacate. (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 926 ["Abandonment of premises by the tenant within a reasonable time after the wrongful act of the landlord is essential to enable the tenant to claim a constructive eviction."].) An interference by the landlord amounts to a constructive eviction if the tenant so elects and surrenders possession, and the tenant will not be liable for rentals following his eviction. Upon surrendering possession of the premises, the tenant is relieved of the obligation to pay rent and may sue for damages, or may plead damages by way of offset in an action brought by the landlord to recover any unpaid rent that accrued prior to surrender. (Andrews v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 590.)

Here, Plaintiffs insufficiently state a claim for constructive eviction. Notably, they still remain in possession of the Property. (FAC ¶¶ 10, 10A, 25.) There are no other allegations that they surrendered the Property. The court is not persuaded by Plaintiffs' argument that their relocation during remediation efforts satisfies constructive eviction. The case authorities before this court indicate abandonment, surrender, or vacating the property are necessary for this claim. (Stoiber, supra, 101 Cal.App.3d at 926; Cunningham v. Universal Underwriters (2002) 98 Cal.App.4th 1141, 1152-1153.)

Accordingly, the court SUSTAINED the demurrer to the First Cause of Action without leave to amend.

Second Cause of
Action: Breach of Written Contract [Maria, Trust, Sunaire]

Defendants contend that this claim fails because the lease is unenforceable both self-executing and by the Statute of Frauds for lack of signature.[3]

They also contend that the lease is uncertain since only one questionable signature appears on the signature line despite Plaintiffs' allegations that both Giovanni and Maria are owners of record (i.e., both are landlords). Additionally, they contend that the Trust and Sunaire are not parties to the lease so the claim fails as to them. Finally, they contend the FAC fails to identify the breached provision(s).

Plaintiffs argue that this is an improper serial demurrer since the signatures and Statute of Frauds issues should have been raised at the previous demurrer.

Defendants reply that the serial demurrer argument is flawed because the FAC is a significantly different pleading than the original complaint. They add that Plaintiffs cannot allege an agreement with two landlords when their exhibit fails to show their signatures. They otherwise reiterate their arguments on reply.

The standard elements of a claim for breach of contract are (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom. (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.) "A written contract may be pleaded by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect." (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) To plead a contract by its legal effect, a plaintiff must "allege the substance of its relevant terms. This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions." (Ibid.)

Here, Plaintiffs stated a claim for breach of contract. First, they do attach a copy of a contract. (FAC ¶¶ 1, 44, Exhibit A.) Plaintiffs additionally allege terms [month-to-month lease, \$2,200 rent, \$1,200 deposit, maintain habitable conditions, repair items]. (FAC. ¶¶ 1, 45.) Second, Plaintiffs allege they complied with the lease by paying rent. (FAC ¶ 32.) Third, Plaintiffs allege breach by "Landlord" by "unlawfully entering the Property, and failing to maintain the Property in habitable conditions." (FAC ¶ 47.) Finally, Plaintiffs allege resulting damages. (See generally, FAC.) Now, Plaintiffs cured the prior defect as to Maria because they define her and Giovanni as the Landlord. (FAC ¶ 3.)

Accordingly, the court OVERRULES the demurrer to the Second Cause of Action.

Third Cause of
Action: Breach of the Covenant of Quiet Enjoyment [Maria, Trust, Sunaire]

Defendants contend this claim fails to cure the prior defects (incorporating prior argument on no contract and Statute of Frauds as well) and the minor plaintiffs still cannot sue for claims arising out of the lease.

Plaintiffs argue that this is an improper serial demurrer since the signatures and Statute of Frauds issues should have been raised at the previous demurrer.

Defendants reiterate their arguments on reply.

“In the absence of language to the contrary, every lease contains an implied covenant of quiet enjoyment, whereby the landlord impliedly covenants that the tenant shall have quiet enjoyment and possession of the premises.” (Andrew v. Mobile Aire Estates (2005) 125 Cal.App.4th 578, 589.) “The covenant of quiet enjoyment insulates the tenant against any act or omission on the part of the landlord, or anyone claiming under him, which interferes with a tenants right to use and enjoy the premises for the purposes contemplated by the tenancy.” (Ibid.) “To be actionable, the landlords act or omission must substantially interfere with a tenants right to use and enjoy the premises for the purposes contemplated by the tenancy.” (Ibid.) A tenant may elect to stand upon the lease, remain in possession and sue for breach of contract damages as well as for injunctive relief. (Id. at p. 590.)

The court adopts its analysis on the existence of a contract. The remaining issue is whether the minor plaintiffs can also bring this claim. The authorities provided to the court indicate they do not. Notably, this claim is rooted in every lease, a contract between certain parties. The minors here, while they reside at the Property, are not parties to the lease. (FAC ¶¶ 1, 3, Exhibit A.) Therefore, they cannot pursue this particular claim.

Accordingly, the court SUSTAINS the demurrer as to the minor Plaintiffs without leave to amend, and otherwise OVERRULES the demurrer.

Fourth Cause of
Action: Tortious Breach of the Implied Warranty of Habitability [Maria, Trust,

Sunaire]

Defendants' arguments here are the same as for the second and third causes of action.

Plaintiffs argue that this is an improper serial demurrer since the signatures and Statute of Frauds issues should have been raised at the previous demurrer.

Defendants reiterate their arguments on reply.

For the same reasons as the second and third causes of action, the court OVERRULES the demurrer to the fourth cause of action.

Fifth Cause of

Action: Contractual Breach of the Implied Warranty of Habitability [Maria, Trust, Sunaire]

This is the same argument as for the Third Cause of Action.

For the same reasons articulated in the Third Cause of Action, the court OVERRULES the demurrer to the Fifth Cause of Action.

Seventh Cause of

Action: Violation of Los Angeles Municipal Code § 45.33

Defendants contend this claim fails because Plaintiffs failed to allege facts showing Defendants' objective was to force them to vacate or providing notice of the alleged violation to the Defendants.

Plaintiffs argue that they satisfied the pleading requirements for this claim.

Defendants reply that their conclusory paragraph does not provide facts supporting this claim and improperly groups the Defendants together.

TAHO § 45.33 defines tenant harassment as "a landlord's knowing and willful course of conduct directed at a specific tenant or tenants that causes detriment and harm, and that serves no lawful purpose" including various actions.

“A civil proceeding or small claims case initiated under this article alleging any violation of LAMC Section 45.33 may be commenced only after the tenant or any other person provides written notice to the landlord of the alleged violation, and the landlord fails to remedy the repair or maintenance issue within a reasonable period of time.” (TAHO § 45.35.(f).)

Here, Plaintiffs sufficiently stated this claim. They alleged they gave written notice to Defendants concerning the alleged violations. (FAC ¶ 73A.) This conclusion is supported by other factual allegations of communications between Defendants and Plaintiffs. (FAC ¶¶ 20, 22.) Whether or not this is true is inappropriately decided at the demurrer stage.

Accordingly, the court OVERRULES the demurrer to the Seventh Cause of Action.

Eighth Cause of
Action: Unlawful Entry [Maria, Trust, Sunaire]

Defendants contend this claim fails as to Maria, the Trust, and Sunaire because Plaintiffs failed to allege which Defendants entered the Property. They add that the claim fails because Plaintiffs alleged consent to entry in paragraph 27 of the FAC.

Plaintiffs argue that this is an improper serial demurrer since the signatures and Statute of Frauds issues should have been raised at the previous demurrer.

Defendants reply that Plaintiffs failed to allege specific facts that Maria, the trust, or Sunaire entered the property, directed entry, abused access rights, changed locks, removed belongings, or entered at night.

Civil Code section 1954 addresses the circumstances under which landlords are authorized “to enter an occupied residential dwelling.”² (Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1049.) Civil Code section 1954 states that a “landlord may enter a dwelling unit only in the following cases:

¿

(1) In case of emergency.¿

(2) To make necessary or agreed repairs, decorations, alterations or improvements, supply necessary or agreed services, or exhibit the dwelling unit to prospective or actual purchasers, mortgagees, tenants, workers, or contractors or to make an inspection pursuant to subdivision (f) of Section 1950.5.¿

(3) When the tenant has abandoned or surrendered the premises.¿

(4) Pursuant to court order.¿

(5) For the purposes set forth in Chapter 2.5 (commencing with Section 1954.201).¿

(6) To comply with the provisions of Article 2.2 (commencing with Section 17973) of Chapter 5 of Part 1.5 of Division 13 of the Health and Safety Code.”

¿

(Civ. Code, § 1954(a).)¿ Civil

Code section 1954 is intended to protect people “who are actually living in the dwelling.”¿(Spinks, 171

Cal.App.4th at 1050.)¿¿

Here, Plaintiffs sufficiently alleged this claim. Notably, they alleged unlawful entry by “Defendants” who entered the Property to “remove[] Tenants’ belongings without their consent . . . brought a locksmith . . . to change the locks . . . [and] at night in order to take photos.” (Compl. ¶ 77.) Whether this conduct was, as the Melandris’ contend, was during the course and scope of lawful actions related to remediation efforts is properly addressed at a later stage. Now that Maria is a properly alleged landlord, this claim pertains to her, too.

Accordingly, the court OVERRULES the demurrer to the

Eighth Cause of Action.

Ninth Cause of
Action: Conversion

Defendants contend this claim fails because Plaintiffs did not allege taking of or dispossession of the property.

Plaintiffs argue that they alleged each element of the claim and intent to displace is not an element.

Defendants reply that Plaintiffs did not allege Defendants took title to the property, sold it, destroyed it, refused a demand for return, or otherwise exercised dominion inconsistent with Plaintiffs' ownership. In essence, they alleged a property damage theory, not conversion.

The elements for a claim of conversion are: "(1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property right; and (3) damages." (IIG Wireless, Inc. v. Yi (2018) 22 Cal.App.5th 630, 650; Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1271.) Intentional destruction or alteration of property may constitute conversion of property. (Martinez v. Robledo (2012) 210 Cal.App.4th 384, 387.) If the interference is less significant than the exercise of complete dominion or control, the proper claim is for trespass to personal property. (See Jamgotchian v. Slender (2009) 170 Cal.App.4th 1384, 1400-1401.) Wrongful intent is not required. (Mendoza v. Rast Produce Co., Inc. (2006) 140 Cal.App.4th 1395, 1405.)

Here, Plaintiffs insufficiently state a conversion claim. Instead, Plaintiffs plead a claim for trespass to chattels (i.e., property damage).[4]

The elements of a claim for trespass to personal property are: (1) plaintiff owned, possessed, or had a right to property, (2) defendant's intentional interference with plaintiff's use or possession, (3) no consent by plaintiff, (4) harm, and (5) causation. (Intel Corp. v. Hamidi (2003) 30 Cal.4th 1342, 1350-1351.) A defendant may temporarily dispossess plaintiff of the property, including by blocking access to it. (Jamgotchian v. Slender (2009) 170 Cal.App.4th 1384, 1401.) To be actionable, defendant's interference must have caused some injury to the property or to

plaintiff's rights in the property. (Intel Corp. supra, at p. 1350.)

First, Plaintiffs allege they owned certain personal property. (FAC ¶ 81.) Second, they alleged Defendants' interference by refusing to remediate mold which then destroyed the belongings. (Ibid.) Third, Plaintiffs did not consent to this interference. (FAC ¶ 82.) Fourth, the property was damaged. (FAC ¶ 81.) Finally, the harm was caused by the interference. (Ibid.) Therefore, this claim is sufficiently pleaded.

Accordingly, the court **OVERRULES** the demurrer to the Ninth Cause of Action.

Twelfth Cause of Action: Unpaid Wages including Unpaid Overtime Wages

Defendants contend Plaintiffs made no changes to this claim at all and it fails for the same reasons previously articulated. Those include, failure to allege the amount of overtime pay owed, dates Plaintiff worked, or hours worked either exactly or by approximation. They add there are still no facts of an employee-employer relationship or compliance with Labor Code § 2699.3.

Plaintiffs argue that there is no pleading requirement that Plaintiff Andrew must allege the precise amount of unpaid wages (especially when Defendants likely contain the records) and there is no notice requirement for his non-PAGA claim.

Defendants reply that Plaintiffs concede they need to amend this claim and still failed to sufficiently allege an employer-employee relationship.

An employee's wages include all amounts for labor the employee performed, whether the amount is fixed or ascertained by some method of calculation. (Lab. Code § 200(a).) Wages are payable twice a month. (Lab. Code § 204(a).) An employee bears the initial burden of showing "she worked overtime hours without receiving overtime pay before the employer must establish the applicability of an exemption." (See *Kizer v. Tristar Risk Management* (2017) 13 Cal.App.5th 830, 839 [noting this in the context of a certifying a class.])

Upon reviewing the FAC, Plaintiff Andrew insufficiently

stated this claim. Now, Plaintiffs clarify that he is seeking wages from the period of August 2021 – December 2023. (FAC ¶ 93.) He also alleges he was “employed doing installations and repairs for Giovanni and Maria six days per week . . . coming home at 6:00 PM” and then “had to work on the Property until 2-3 AM every day.” (FAC ¶ 4.) He also alleges working for Sunaire (i.e., for Maria’s dba) from 2019 through date of termination. (FAC ¶ 6.) Taken together, it is still unclear from whom he seeks the unpaid wages. Giovanni and Maria individually? Maria as dba for Sunaire Systems? Plaintiffs also did not allege his hourly rate or any facts of the hours he was supposed to work. These are still curable defects.

Accordingly, the court SUSTAINED the demurrer to the Twelfth Cause of Action with leave to amend.

Fifteenth Cause of Action, Sixteenth Cause of Action, and Seventeenth Cause of Action: Disability Discrimination in Violation of FEHA, Failure to Accommodate Disability in Violation of FEHA, and Failure/Refusal to Engage in Interactive Process

Defendants contend these claims fail because Plaintiffs failed to plead Andrew had a protected disability.

Plaintiffs argue they sufficiently plead Andrew’s disability, plead extensive facts supporting failure to accommodate and refusal to engage in the interactive process.

Defendants reply that Plaintiffs did not satisfy the elements of this claim. In particular, Plaintiffs did not plead Andrew’s job, the accommodation requested, how the accommodation would allow Andrew to perform the essential functions of the job, and Defendants’ refusal.

A FEHA disability discrimination claim requires: (1) the plaintiff has a disability or medical condition or was regarded as suffering from a disability; (2) plaintiff could perform the essential duties of the job with or without reasonable accommodations; (3) the defendant’s adverse employment decision; and (4) because of the plaintiff’s actual or perceived disability or medical condition. (Faust v. Cal. Portland Cement Co. (2007) 150 Cal.App.4th 864, 886; Gelfo v. Lockheed Martin Corp. (2006) 140 Cal.App.4th 34, 46-47 [to show disability, it is insufficient to allege a physical condition but plaintiffs must also demonstrate condition makes

“difficult” work or some major life activity; and, to show one is regarded as having disability, must be regarded as having condition making major life activity difficult, or as having a condition that may become disabling.))

A failure to accommodate claim requires: (1) the plaintiff has a disability or medical condition or was regarded as suffering from a disability; (2) the plaintiff could perform the essential duties of a sought reassigned job with or without reasonable accommodations; and (3) the employer failed to reasonably accommodate. (Nadaf-Rahrov v. Neiman Marcus Group, Inc. (2008) 166 Cal.App.4th 952, 975-976 [reasonable accommodation under FEHA includes adjusting the workplace to enable employees to perform essential functions of held or desired jobs].)

Employers and employees are required to engage in communications in good faith towards exploring reasonable accommodations as to a known disability, unless futile. (Claudio v. Regents of Univ. of Cal. (2005) 134 Cal.App.4th 224, 249.) As to claims of failure to engage in the interactive process, employees “must identify a reasonable accommodation that was available at the time the interactive process should have occurred.” (Scotch v. Art Institute of California-Orange County, Inc. (2009) 173 Cal.App.4th 986, 994-995.)

Here, Plaintiffs insufficiently stated this claim. First, Plaintiffs articulate physical injuries, not disabilities. (FAC ¶¶ 6, 9, 18, 24.) There is one reference to “mobility issues.” (FAC ¶ 6.) Taken together and read in the context of the whole FAC, these injuries are not a disability. As to the mobility issues, there is no allegation that Defendants were aware of the mobility issues. There are also no allegations that Defendants terminated Plaintiff Andrew for having (or perceived to have) a disability.

Accordingly, the court SUSTAINS the demurrers to the Fifteenth, Sixteenth, and Seventeenth Causes of Action with leave to amend.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the first cause of action is SUSTAINED without leave to amend;

2. Demurrers

to the second, fourth, fifth, seventh, eighth, and ninth causes of action are OVERRULED;

3. Demurrer

to the third cause of action is SUSTAINED concerning the minor Plaintiffs and is otherwise OVERRULED;

4. Demurrers

to the twelfth, fifteenth, sixteenth, and seventeenth causes of action are SUSTAINED with leave to amend;

5. Plaintiffs

shall file their FINAL amended complaint within 21 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: June 26, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The court previously overruled the demurrer as to the sixth and thirteenth causes of action. The court also overruled the second, third, fourth, fifth, eighth, and tenth causes of action as to Giovanni. The court sees no reason to deviate from that prior ruling. As such, the following analysis pertains to Maria only. What is more, the Trust and dba are simply referring to Giovanni and Maria (Trust) and Maria (dba).

[2]

This is allowed pursuant to CCP § 430.30(c).

[3]

The court rejects these arguments as they should have been brought at the first

demurrer. (CCP § 430.41(b).) The lease attached as Exhibit A is the same in the original complaint and the FAC.

[4]

The court is not bound by the captions or labels of a cause of action in a pleading and the nature and character of a pleading is to be determined from the facts alleged, not the name given by the pleader to the cause of action. Thus, regardless of whether the complaint gives the causes of action a label imbued with personal property law meaning, it is the facts behind the label which govern the nature and character of the primary right sued upon. *Ananda Church of*

Self-Realization v. Massachusetts Bay Insurance (2002) 95 Cal. App. 4th 1273, 1281.